Topic 1 — Constitutional Development

Covers syllabus (click to expand)

Company (कंपनी) rule (कंपनी शासन): Regulating Act (रेगुलेटिंग एक्ट) 1773 (रेगुलेटिंग एक्ट) | Act of Settlement 1781 | Pitt's India Act 1784 | Act of 1786 | Charter Acts 1793 / 1813 / 1833 / 1853 **Crown & councils:** GOI Act 1858 | Indian Councils Acts 1861 / 1892 / 1909 (Morley–Minto) | Portfolio system | Separate electorates **Reforms & Acts:** GOI Act 1919 (Dyarchy (द्वैध शासन)) | Chamber of Princes | Simon Commission (साइमन कमीशन) | Nehru (नेहरू) Report (नेहरू रिपोर्ट) | Round Table Conferences | Communal Award (सांप्रदायिक पंचाट) | Poona Pact (पूना पैक्ट) | GOI Act 1935 (Provincial Autonomy) | ICS / PSC **Transfer of power:** August Offer (अगस्त प्रस्ताव) | Cripps (क्रिप्स) Mission | Wavell Plan (वेवेल योजना) / Shimla | Cabinet Mission (कैबिनेट मिशन) | Interim Government | Mountbatten Plan (माउंटबेटन योजना) | Indian Independence Act (अधिनियम) 1947 **Constitution-making:** Demand for CA | Composition (389 → 299 · indirect PR-STV · ~15 women) | Committees & sub-committees (Minorities · Tribal (आदिवासी) · Excluded Areas) | Objectives Resolution → Preamble (प्रस्तावना) | B.N. Rau | Drafting Committee | Adoption / Enforcement | Sources / Borrowed features

Sources baked in: Laxmikanth Ch.1–2, NCERT Class 12 Politics, Spectrum, ClearIAS / Drishti coaching map, UPPCS Prelims PYQs 2018–2025 **Weight:** ★★★ — chronology, Dyarchy vs Autonomy, missions, CA dates/committees, borrowed features **Last verified:** September 2026 — Ghatnachakra Constitutional Development gap-fill + Extra Drill bank **Current Affairs:** N/A (historical frame); Constitution Day = **26 Nov** (adoption anniversary)

N.1 Company rule — Regulating Act to Charter 1853

Regulating Act, 1773

Identity: First British Parliamentary statute to regulate East India Company territorial rule | **GG of Bengal:** Warren Hastings (4-member Executive Council)

- Designated the Governor of Bengal as **Governor-General of Bengal** with a Council of four (चातुर्याम).
- Governors of **Bombay and Madras** were made subordinate to Bengal in war, revenue and diplomacy.
- Military and civil decisions were taken by a **majority of the Council**; the Governor-General had only a **casting vote** in a tie.
- **Supreme Court at Calcutta** was established in **1774**; first Chief Justice was **Sir Elijah Impey** (not Lemaister).
- Court of Directors had to report civil, military and revenue affairs to the British government.
- Company servants were restricted from private trade (पण्याध्यक्ष) and from accepting presents.
- Ambiguity between Supreme Court jurisdiction and Governor-General-in-Council was later clarified by the **Act of Settlement / Amending Act, 1781**.
- The Act did **not** create the Governor-General of India (that comes in **1833**).

> **Logic:** 1773 = GG of **Bengal** + SC Calcutta 1774; 1833 = GG of **India**.

Pitt's India Act, 1784

Identity: Dual Control / Dual Government over Company affairs

- Created a **Board of Control** (six members) for political supervision of Indian affairs by the British Crown/government.
- **Board of Control** handled political / territorial matters; **Court of Directors** handled commercial matters.
- Company's territories were described as **"British possessions in India."**
- Governor-General's Council was reduced from four to **three** members.
- British government supremacy over Company administration was strengthened, but Company rule itself continued.

> **Logic:** Board = politics; Directors = trade.

Act of 1786

Identity: Cornwallis (कॉर्नवालिस) package — GG override + Commander-in-Chief

- Allowed the Governor-General to **overrule his Council** in matters affecting the safety, peace or interests of the Empire in India.
- Combined the offices of **Governor-General** and **Commander-in-Chief**.
- **Lord Cornwallis** was the first Governor-General to enjoy both powers.

Charter Acts

Charter Act, 1793

- Company charter was renewed; trade monopoly continued.
- Revenue administration and GG & Council powers were refined.
- Commander-in-Chief was not to be a Council member unless specially appointed.

Charter Act, 1813

- Company trade monopoly in India ended **except tea trade and trade with China**.
- Christian missionaries were allowed to enter India.
- **₹1 lakh** annually was granted for education / revival of literature and science.
- Crown's sovereignty over Company territories was asserted more explicitly.
- Territory and **revenue** remained with the Company for the next **20 years** — British Parliament did **not** take direct control of Indian revenues in 1813 (that comes with **1858** / Secretary of State).
- Local governments were empowered to impose taxes and punish non-payment.

Education path after 1813 (coaching map)

- **General Committee of Public Instruction (1823)** administered the ₹1 lakh grant.

- **Orientalist (प्राच्यवादी)–Anglicist (आंग्लवादी) Controversy** followed: Prinsep and H.H. Wilson backed oriental learning; Charles Trevelyan led the Anglicists for English medium.
- On **7 March 1835**, Bentinck accepted **Macaulay's Minute** — English became the medium of higher education.

Charter Act, 1833

- Created **Governor-General of India** (first: **Lord William Bentinck**) — all-India executive.
- Company's commercial functions ended completely; Company became a purely administrative/political body.
- Legislation was centralised: GG-in-Council alone could legislate for all British India.
- A **Law Member** (fourth member) was added to the Council (**Lord Macaulay**) — entitled to sit for **legislative** purposes.
- A **Law Commission** (Macaulay) was provided to codify laws.
- **Section 87** said no person of India or the Crown would be debarred from Company office on grounds of religion, place of birth, descent or colour — later treated as the foundation for Indian share in administration.
- Open competition for civil services was attempted in spirit but **not effectively implemented**.
- Coaching fact: laws before 1833 are often called **Regulations**; those after are commonly called **Acts**.

Charter Act, 1853

- Introduced **open competition** for the **Indian Civil Service** (Macaulay Committee followed; papers soon held in London).
- Separated the **Legislative Council** from the Executive Council for the first time — a distinct Central legislative council for law-making.
- Charter was not renewed for a fixed 20-year period — Company rule was left open-ended until 1858.
- Law Member became a full member of the Governor-General's Executive Council.

> **Logic:** Open competition for ICS = **1853**, not 1833. Section 87 (1833) = eligibility pledge, not open exam.

N.2 Crown rule and Indian Councils Acts

Government of India Act, 1858

Identity: Company rule → Crown rule | **First Viceroy:** Lord Canning

- After 1857, government of India was transferred from Company to the **British Crown**.
- Created **Secretary of State for India** — a British Cabinet minister (कैबिनेट मंत्री) — assisted by a **Council of India** (initially 15 members).
- Governor-General was also designated **Viceroy** as the Crown's representative.
- Pitt's double government ended; Board of Control and Court of Directors were abolished for Indian governance.

- Accompanied by **Queen's Proclamation, 1 November 1858** (read at Allahabad (इलाहाबाद) by Canning): no further territorial annexation in the old style; equal treatment promises; respect for religions and customs.
- Indian administration now answered directly to British Parliament through the Secretary of State.

Indian Councils Act, 1861

Viceroy: Lord Canning

- Transformed the Viceroy's Executive Council into a miniature (लघु चित्र) cabinet on the **portfolio system**: five members headed **Revenue, Finance, Law, Home and Military**.
- A **sixth** Executive Council member (Public Works) was added in **1874** — not in the original 1861 count.
- For legislation, **additional members** could be **minimum 6 and maximum 12**, nominated by the Viceroy for **two years**; at least **half** had to be non-official.
- Viceroy could nominate Indians as non-official members; in **1862** Canning nominated three: **Raja (राजा) of Benaras, Maharaja (महाराज) of Patiala, Sir Dinkar Rao**.
- Legislative powers of **Bombay and Madras** were restored (beginning of legislative decentralisation).
- **No differentiation** was yet made between Central and Provincial subjects.
- New Legislative Councils were provided for Bengal (1862), North-Western Provinces (1886) and Punjab (1897).
- Viceroy could issue **Ordinances** valid for **6 months** in emergencies without the council's consent.
- **Portfolio system:** Canning introduced departmental portfolios in practice (**1859**); the **1861 Act gave legal recognition**.
- Indians were associated with law-making by nomination — **no** elections, **no** responsible government.

Inline PYQ — UPPCS Prelims 2021, Q13

Which one of the following Acts of British India strengthened the Viceroy's authority over his executive council by substituting 'portfolio' or 'departmental' system for corporate functioning?

A. Indian Council Act, 1861 B. Government of India Act, 1858 C. Indian Council Act, 1892 D. Indian Council Act, 1909

Show answer

Ans: A — Indian Councils Act, 1861.

Indian Councils Act, 1892

Viceroy: Lord Lansdowne (लैंसडाउन)

- Received royal assent on **20 June 1892** and commenced (लागू) on **3 February 1893** — do not treat "implemented 20 June 1892" as the start of working.
- Additional members of the Governor-General's Council rose to a **minimum of 10 and maximum of 16**; at least half had to be non-official.
- Number of **non-official** members in Central and Provincial Legislative Councils was increased; **official majority** was retained at the Centre.

- Councils could **discuss the annual budget** (not vote on it) and ask **questions** with prior notice (about **six days**).
- Members were **not** given the right to ask **supplementary questions** — that comes with **1909**.
- An element of **indirect election** was introduced, but the British avoided the word "election" — used **nomination on recommendation**.
- Central Council nominations drew on Provincial Legislative Councils and Bengal Chamber of Commerce.
- Provincial nominations drew on District Boards, Municipalities, Universities, Trade Associations, Zamindars and Chambers.
- There was still no power to vote out the executive; **no responsible government**.

Indian Councils Act, 1909 (Morley–Minto Reforms)

Viceroy: Lord Minto II · **Secretary of State:** John Morley

- Imperial Legislative Council size rose (about **16** → **60**); official majority remained at the Centre.
- Provincial Legislative Councils were enlarged; non-official majority became possible in provinces.
- Members could ask **supplementary questions** and move resolutions on the budget; voting (गणपूर्ति) on the budget as a whole was still not allowed.
- Introduced **separate electorate for Muslims** — only Muslim voters elect Muslim candidates. Lord Minto is called **"Father of Communal Electorate."**
- First Indian appointed to the Viceroy's Executive Council: **Satyendra Prasad Sinha** (Law Member).
- Separate representation was also given to Presidency (प्रेसीडेंसी) Corporations, Chambers of Commerce, Universities and Zamindars.
- Aimed at associating Indians with administration — **not** responsible government.

> **Logic:** Muslim separate electorates begin with **1909**, not with the Communal Award of 1932.

N.3 Government of India Act, 1919 (Montagu–Chelmsford)

Identity: Dyarchy in provinces + bicameral Centre | **In force:** 1921 | **Viceroy:** Lord Chelmsford

- Based on Edwin Montagu's declaration of **20 August 1917** — gradual introduction of responsible government in India.
- For the first time the statute used the phrase **responsible Government**.
- Subjects were classified into **Central** and **Provincial** under Devolution Rules — beginning of legislative devolution / provincial autonomy path.
- **Dyarchy in provinces** (dual rule):
- **Reserved subjects** (administration of justice, police, prisons, land revenue, irrigation, forests, press) — Governor and Executive Councillors; **not** responsible to the legislature.
- **Transferred subjects** (education, health, local self-government, agriculture, public works) — Indian ministers responsible to the Legislative Council.
- At the Centre, the Indian Legislative Council was replaced by a **bicameral** legislature:

- **Council of State** (Upper House) — statute spoke of about **60** members (rules later set roughly **33 elected + 27 nominated**).
- **Legislative Assembly** (Lower House) — originally about **140** (100 elected + 40 nominated); rules later raised it to about **143–145**.
- Majority of members elected by **direct** election (limited franchise) — first adoption of direct election at the Centre.
- Provided for **three Indian members** in the Viceroy's Executive Council (excluding the Commander-in-Chief).
- Extended separate electorates to Sikhs, Indian Christians, Anglo-Indians and Europeans.
- Separated provincial budget from the central budget.
- Created office of **High Commissioner for India** in London.
- Provided for a **Public Service Commission** → Central PSC set up in **1926**.
- Provided for a **separate ICS examination in India** (first held at **Allahabad in 1922**, later Delhi). By **1941**, Indians outnumbered Europeans in the ICS.
- Women's franchise was **not** granted automatically to all women above 21; provinces could decide limited women's voting on property/education tests.
- Proposed **Chamber of Princes (Narendra Mandal)** — royal proclamation **23 December 1919**; formed **1921** with about **120** members; advisory body; first Chancellor **Maharaja Ganga (गंगा) Singh of Bikaner**; Viceroy presided at annual meetings.
- Mandated a statutory commission after **10 years** → Simon Commission announced early in **November 1927**.
- Central Legislative Assembly elections under the 1919 frame included **1926** and **1945**; the **last** such election was **1945** (1937 was under the 1935 provincial scheme).
- Coaching fact: federal parts of the 1935 Act never ran; till 1947 the Centre largely continued under the **1919** executive/legislative frame for those unimplemented federal pieces.

Inline PYQ — UPPCS Prelims 2023, Q43

By which of the following Acts was the **Chamber of Princes** with 120 members created?

A. Charter Act of 1853 B. Act of 1793 C. Act of 1909 D. Government of India Act, 1919

Show answer

Ans: D — Government of India Act, 1919.

N.4 Government of India Act, 1935

Identity: Longest British Indian constitutional statute; structural template for Independent India's Constitution

- Introduced **Provincial Autonomy** (in force from **1937**) — ended Dyarchy in the provinces; ministers responsible for provincial subjects.
- Proposed an **All-India Federation** / **Federation of India** of British Indian provinces + princely states — **never came into being** (states did not accede as required).

- Proposed **Dyarchy at the Centre — never operated**. Defence, External Affairs, Ecclesiastical Affairs and Tribal Areas remained in the Governor-General's **discretion**.
- Introduced the idea of **constitutional autocracy** — executive authority of provinces and Centre vested in Governors / Governor-General on behalf of the Crown.
- Divided powers into **three lists**: Federal, Provincial and Concurrent (commonly remembered counts ~**59 / 54 / 36**).
- Residuary powers under the Act vested in the **Viceroy / Governor-General**, **not** in the Federal or Provincial Legislatures.
- Provided a **Federal Court** (inaugurated **1 October 1937**; first Chief Justice **Sir Maurice Gwyer**) — forerunner path to the Supreme Court.
- Introduced bicameralism in **six of eleven** provinces: **Bengal, Bombay, Madras, Bihar, Assam, United Provinces**.
- Extended franchise further (still limited); continued communal representation and extended separate electorates to **Scheduled Castes, women and labour**.
- Abolished the **Council of India** that had assisted the Secretary of State since 1858; created Advisers instead.
- **Provided for** establishment of **Reserve Bank of India** to control currency and credit — actual statute is **RBI Act, 1934** (operations from **1 April 1935**). Do not write "RBI was created only by GOI Act 1935" as a blunt fact.
- Also provided for Federal / Provincial / Joint Public Service Commissions.
- Separated **Burma** (from April **1937**) and **Aden** from India; created new provinces of **Sindh** and **Orissa**.
- President's ordinance power under **Article 123** is modelled on **Section 42** of the 1935 Act (Viceroy ordinance power itself is older — **1861**).
- Did **not** give India a written Constitution — demand for framing a constitution by Indians was accepted later in the **August Offer, 1940**.
- Retained Governor's special responsibilities / discretionary powers — real autonomy remained constrained.
- 1937 elections: Congress formed ministries in a majority of provinces; League did not dominate Muslim seats across all provinces.
- Largest structural source of Independent India's Constitution (federal scheme, lists, emergency lineage, Federal Court path).

> **Logic:** Autonomy **operated**; Federation and Centre Dyarchy **did not**. Residuary = **Viceroy**, not legislature.

N.5 Indian Civil Service and Separate Electorates

Indian Civil Service

- Higher civil service under Company/Crown was known as **Covenanted Civil Service** (ICS); lower provincial service was uncovenanted.

- Early training was associated with **Haileybury College** (हेलीबरी) (England).
- Charter Act **1853** introduced **open competitive examination** for ICS.
- Notes were long held in London; age limits and Indian entry were constant political issues.
- Indianisation of services was a major nationalist demand (Congress resolutions; Lee Commission 1924 context).
- Under GOI Act 1919, Central Public Service Commission was created (**1926**).
- After Independence, the ICS continuum shaped the **IAS**.

Separate Electorates

- **1909 (Morley–Minto):** first introduced for **Muslims**.
- **1919 (Montagu–Chelmsford):** extended to Sikhs, Indian Christians, Anglo-Indians, Europeans.
- **Communal Award, 1932:** further extended separate electorates to **Depressed Classes** (among others).
- **Poona Pact, 1932:** replaced Depressed Classes' separate electorates with **reserved seats in a joint electorate**.
- Separate electorates remained a major constitutional controversy up to Partition; the Constituent Assembly rejected the separate-electorate model in favour of **joint electorates** (see N.9 — Patel's "mischief" quote).

N.6 Simon Commission to Poona Pact

Simon Commission, 1927

- Statutory commission under **Sir John Simon** (7 members) as required by the 1919 Act.
- **All-British** composition — **no Indian member** → nationwide boycott (बहिष्कार) ("Simon Go Back").
- Lala Lajpat Rai (लाला लाजपत राय) was injured in protest lathi-charge at Lahore (1928) and later died — major nationalist flashpoint.
- Report submitted **1930**: recommended abolition of Dyarchy; extension of responsible government in provinces; federation of British India and princely states; continuation of communal electorate.
- Boycott + political deadlock led toward Round Table Conferences.

Inline PYQ — UPPCS Prelims 2021, Q28

Consider the following events and arrange them into chronological order:

I. Sharda (शारदा) Act II. Nehru Report III. Constitution of Simon Commission IV. Dandi (दांडी) March

A. III, II, I and IV B. I, II, III and IV C. IV, III, II and I D. I, IV, II and III

Show answer

Ans: A — Simon 1927 → Nehru Report 1928 (नेहरू रिपोर्ट) → Sharda Act 1929 → Dandi March 1930.

Nehru Report, 1928

- Draft constitution by an all-parties committee chaired by **Motilal Nehru** (Secretary: Jawaharlal Nehru (जवाहरलाल नेहरू)).
- Recommended **Dominion Status** (डोमिनियन) for India (not complete independence yet — debated inside Congress).
- Proposed fundamental rights, parliamentary system, and **joint electorates** (with reserved seats for minorities as formulated).
- Rejected separate electorates as a permanent communal solution.
- Muslim League rejected it → **Jinnah's Fourteen Points (1929)**.
- Calcutta Congress (1928) accepted Dominion Status demand with a one-year ultimatum → later Lahore 1929 (लाहौर) Purna Swaraj (पूर्ण स्वराज) line.

Round Table Conferences, Communal Award & Poona Pact

Round Table Conferences (London)

- **1st RTC (प्रथम) (Nov 1930–Jan 1931):** Congress absent (Civil Disobedience (सविनय अवज्ञा)); princes and other parties attended.
- **Gandhi–Irwin (इरविन) Pact (गांधी-इरविन) (5 March 1931):** Congress agreed to join 2nd RTC (द्वितीय गोलमेज); CDM suspended.
- **2nd RTC (Sep–Dec 1931):** Gandhi as sole Congress representative; also Sarojini Naidu, Madan Mohan Malaviya (मालवीय), etc.
- **Dr. Rajendra Prasad did NOT participate** in the 2nd RTC.
- Deadlock on communal representation.
- **3rd RTC (Nov–Dec 1932):** Congress absent again; limited attendance → White Paper (1933) → Joint Select Committee → **GOI Act 1935**.

Inline PYQ — UPPCS Prelims 2020, Q24

Who among the following leaders did NOT participated in the Second Round Table Conference?

A. M.K. Gandhi B. Sarojini Naidu C. Pt. Madan Mohan Malviya D. Dr. Rajendra Prasad

Show answer

Ans: D — Dr. Rajendra Prasad.

Communal Award, 16 August 1932

- Announced by British PM **Ramsay MacDonald**.
- Separate electorates for Muslims, Sikhs, Indian Christians, Anglo-Indians, Europeans, and **Depressed Classes**.
- Gandhi opposed separate electorates for Depressed Classes → fast unto death in **Yerawada Jail**.

Inline PYQ — UPPCS Prelims 2019, Q19

Which of the following is NOT correctly matched?

A. Indian Navy Act — 1927 B. Civil Disobedience Movement — 1930 C. Second Round Table Conference — 1931 D. The Communal Award — 1933

Show answer

Ans: D — Communal Award was **1932**, not 1933.

Poona Pact, 24 September 1932

- Agreement between **Gandhi** (गांधी) and **B.R. Ambedkar** (with Hindu leaders).
- Retained **joint electorate**; gave Depressed Classes **reserved seats** (Award's **71** separate seats idea → **148** reserved seats in provincial legislatures).
- British accepted the Pact; principles influenced later representation under **GOI Act 1935**.

Inline PYQ — UPPCS Prelims 2025, Q7

Consider the following events and arrange them in correct chronological order.

1. Poona Pact
2. End of Civil Disobedience Movement
3. Gandhi-Irwin Pact
4. Second Round Table Conference

Select the correct answer from the code given below:

A. 3, 4, 2, 1 B. 4, 3, 1, 2 C. 4, 3, 2, 1 D. 3, 4, 1, 2

Show answer

Ans: D — Gandhi–Irwin (Mar 1931) → 2nd RTC (1931) → Poona Pact (Sep 1932) → End of CDM (1934).

N.7 August Offer to Cabinet Mission

August Offer, 1940 (Viceroy Linlithgow (लिनलिथगो))

- Offered dominion status after the war; expansion of Viceroy's Executive Council; war advisory council.
- Assured that future constitution would not be framed without minority consent (League-friendly assurance).
- Congress rejected (no immediate independence / national government); League did not fully accept either.

Cripps Mission, March 1942 (Stafford Cripps)

- Context: World War II, Japanese threat, need for Indian cooperation.
- Proposed Dominion Status after war; Constituent Assembly after war; provinces could **opt out** of the Union; defence with British during war.

- Congress rejected (no immediate transfer of power; opt-out could Balkanise); League rejected (no clear Pakistan).
- Failure → Quit India (भारत छोड़ो) Movement (Aug 1942).

Wavell Plan + Shimla Conference, June–July 1945

- Lord Wavell proposed restructuring the Governor-General's Executive Council with **equal Hindu–Muslim representation** (balanced main communities).
- All portfolios except **Defence** were to be held by Indians, including the foreign department.
- A conference at **Shimla** was convened; the Plan aimed to break the constitutional deadlock — it did **not** claim to prevent Partition by Hindu–Muslim equality alone.
- Plan failed when League and Congress could not agree on nominations (League's claim to nominate all Muslim members / parity politics).

Inline PYQ — UPPCS Prelims 2025, Q41

Consider the following events and arrange them in correct chronological order.

1. Cripps Mission
2. Cabinet Mission
3. Shimla Conference
4. Wavell Plan

Select the correct answer from the code given below:

A. 1, 4, 3, 2 B. 4, 1, 2, 3 C. 4, 1, 3, 2 D. 1, 4, 2, 3

Show answer

Ans: A — Cripps (1942) → Wavell Plan (1945) → Shimla Conference (1945) → Cabinet Mission (1946).

Inline PYQ — UPPCS Prelims 2024, Q133

Consider the following events and arrange them in chronological order:

1. Linlithgow August Offer
2. Cripps Mission arrival in India
3. Ramgarh Congress Session (पंगु सत्र)
4. Resignation letters of Congress Ministers

A. 3, 1, 4, 2 B. 4, 3, 1, 2 C. 1, 3, 4, 2 D. 4, 2, 3, 1

Show answer

Ans: B — Resignations (1939) → Ramgarh (1940) → August Offer (1940) → Cripps (1942).

N.8 Interim Government, Mountbatten Plan & Independence Act

Cabinet Mission, 1946 (Pethick-Lawrence, Stafford Cripps, A.V. Alexander (सिकंदर))

- Rejected a fully sovereign Pakistan but proposed a **three-tier** structure and **Sections A / B / C** grouping.
- Weak Centre (defence, foreign affairs, communications); provinces/groups otherwise autonomous.
- Plan for a **Constituent Assembly** (संविधान सभा) and an **Interim Government**.
- Initially accepted then politics shifted — League later withdrew acceptance of the Plan.

Interim Government

- Announced on **24 August 1946**; assumed office **2 September 1946**.
- Viceroy was ex-officio President of the Executive Council; **Jawaharlal Nehru** (जवाहरलाल नेहरू) was **Vice-President** of the Executive Council.
- Initially **no** League members; **five** League members joined on **26 October 1946**.
- **Dr. S. Radhakrishnan** was **not** a member of the Interim Government.

Member	Portfolio
Jawaharlal Nehru	Vice-President; External Affairs & Commonwealth Relations
Sardar Vallabhbhai Patel	Home; Information & Broadcasting
Dr. Rajendra Prasad	Food & Agriculture
Dr. John Matthai	Industries & Supplies
Jagjivan Ram	Labour
Sardar Baldev Singh	Defence
C.H. Bhabha	Works, Mines & Power
Liaquat Ali Khan	Finance
Abdur Rab Nishtar	Posts & Air
Asaf Ali	Railways, Communications & Transport
C. Rajagopalachari	Education & Arts
I.I. Chundrigar	Commerce
Ghazanfar Ali Khan	Health
Jogendra Nath Mandal	Law

Inline PYQ — UPPCS Prelims 2022, Q79

The first Interim National Government was announced on—

A. 25th August 1946 B. 24th August 1946 C. 23rd August 1946 D. 22nd August 1946

Show answer

Ans: B — 24th August 1946.

Inline PYQ — UPPCS Prelims 2018, Q17

Assertion (A): In 1946, the Muslim League withdrew its acceptance of the Cabinet Mission Plan.

Reason (R): The Muslim League joined the interim government formed in 1946.

A. Both (A) and (R) are true and (R) is the correct explanation of (A). B. Both (A) and (R) are true, but (R) is not the correct explanation of (A). C. (A) is true, but (R) is false. D. (A) is false, but (R) is true.

Show answer

Ans: B — Both true; joining Interim does **not** explain withdrawal from the Plan.

Inline PYQ — UPPCS Prelims 2024, Q16

Consider the following events and arrange them in correct chronological order starting from the earliest to the last activity:

1. Royal Indian Navy Revolt
2. Announcement of Cabinet Mission
3. Formation of Interim Government
4. Arrival of a UK Parliamentary Delegation in Delhi

A. 4, 3, 2, 1 B. 4, 1, 2, 3 C. 4, 2, 1, 3 D. 2, 4, 1, 3

Show answer

Ans: B — Delegation (Jan 1946) → RIN Revolt (18 Feb) → Cabinet Mission announced (19 Feb) → Interim (Sep 1946).

Mountbatten Plan / 3 June Plan (3 जून योजना), 1947

- Partition of British India into **India** and **Pakistan**.
- Princely states free to accede to either dominion (paramountcy to lapse).
- Boundary commissions; power transfer by **15 August 1947**.

Indian Independence Act, 18 July 1947

- Created two independent dominions from **15 August 1947**.
- Abolished the office of **Secretary of State for India**.
- Ended British **paramountcy** over princely states.
- Each dominion's Constituent Assembly was empowered to frame its constitution and act as legislature.
- Office of Governor-General continued temporarily for each dominion.
- **GG / Viceroy line (coaching fact):** first Viceroy = **Canning**; last Viceroy (माउंटबेटन) = **Mountbatten**; last British GG of Independent India = **Mountbatten**; first Indian GG = **C. Rajagopalachari**.

N.9 Constituent Assembly

Demand, composition & process

- Idea of a Constituent Assembly: **M.N. Roy (1934)** first floated it; **Swaraj Party** made the first **formal** demand at **Ranchi (May 1934)**; Congress repeated the demand at **Patna (पटना) (May 1934)** / **1935**.
- In **1938**, Nehru declared that free India's constitution must be framed by a CA elected on **adult franchise** without outside interference.
- Gandhi, in *Harijan* (हरिजन) (**19 November 1939**, "The Only Way"), wrote that the CA alone can produce a constitution indigenous to the country.
- British accepted the idea in principle in the **August Offer, 1940**; **Cripps Mission (1942)** proposed a CA after the war; actual Assembly was framed under **Cabinet Mission Plan, 1946**.
- Cabinet Mission members: **Pethick-Lawrence**, **Stafford Cripps**, **A.V. Alexander** — **William Wood** was **not** a member.
- **Initial strength 389** = **292** (British Indian provinces) + **93** (Princely States) + **4** (Chief Commissioner's Provinces) — often remembered as **296 + 93**.
- Roughly **one representative per 10 lakh** population (जनसंख्या).
- After Partition the membership fell to about **299**; **284** members signed the Constitution on **26 November 1949**.
- British Indian members were **indirectly elected** by Provincial Legislative Assemblies through **proportional representation with the single transferable vote** — **not** universal adult franchise (franchise followed the **1935 Act** tax/education/property limits).
- Princely representatives were **nominated** by rulers; princely participation began gradually from the third session (**28 April 1947**).
- **Congress** won about **208** provincial seats; **Muslim League** about **73**; others about **15** — League later **boycotted** early sittings after Direct Action politics.
- **Mahatma Gandhi (महात्मा गांधी) was not a member** of the Constituent Assembly.
- First meeting: **9 December 1946** (**207** members present) — temporary President **Dr. Sachchidananda Sinha**.
- First nominated temporary Deputy Chairman: **Frank Anthony** (9 Dec 1946); first **permanent** Vice-President: **H.C. Mukherjee**.
- Permanent President: **Dr. Rajendra Prasad** — **11 December 1946** (proposed by J.B. Kripalani).
- **Objectives Resolution** moved by **Jawaharlal Nehru** on **13 December 1946** (fifth meeting of the first session); adopted **22 January 1947** — philosophical base of the Constitution (later reflected in Preamble).
- **Maulana Azad** argued for deferring adult franchise by **15 years**; Rajendra Prasad and Nehru backed immediate UAF in the Constitution.

Objectives Resolution → Preamble

Identity: Philosophical parent of the Preamble | Moved **13 Dec 1946** · Adopted **22 Jan 1947** | Mover: **Jawaharlal Nehru**

- Declared India an **Independent Sovereign Republic**.
- Declared that territories would join as a **Union**.
- Declared that **power and authority** of the Union derive from the **people**.
- Guaranteed **Justice** (social, economic, political), **Equality** of status and opportunity, and **Freedom of thought, expression, belief, faith, worship, vocation, association and action**.
- Promised adequate safeguards for **minorities**, **tribal areas**, **backward and depressed classes**.
- Affirmed India's commitment to **world peace** and the welfare of humanity.
- Modified form of these ideals becomes the **Preamble** (प्रस्तावना) — "We, the People…" and the Justice–Liberty–Equality–Fraternity quartet.
- Trap: Objectives Resolution was **moved** on **13 Dec 1946**, not adopted that day; adoption = **22 Jan 1947**.

> **Logic:** Objectives Resolution = Preamble seed; full Preamble text and keyword counts live in **Topic 2 — Features**.

- National Flag adopted by CA on **22 July 1947**.
- Constitutional Adviser **B.N. Rau** prepared a working draft; Drafting Committee refined it.
- Draft Constitution published **February 1948**; first reading (रीडिंग) November 1948; second reading clause-by-clause through 1949; third reading November 1949.
- Work spanned about **2 years 11 months 18 days**; Assembly sat for **11 sessions** (about **165** sitting days in standard coaching memory).
- After **15 August 1947** the CA also functioned as the **Provisional Parliament** of the Dominion — dual role (constitution-making under Rajendra Prasad; legislative sittings under **G.V. Mavlankar** as Speaker).
- **Last meeting: 24 January 1950** — also adopted **Jana Gana Mana (माना)** (National Anthem) and **Vande Mataram** (National Song (सोंग)); members signed the Constitution; Rajendra Prasad elected first President.
- First President of India: **Rajendra Prasad** · First Prime Minister: **Jawaharlal Nehru**.
- Official seal (मुद्रा) of the Constituent Assembly showed an **elephant (*Gaja*)**.

Key Functionaries, Calligraphy & Illumination of the Constitution

Role / Element	Person / Institution	Specific Fact (UPPCS Trap Lock)
Constitutional Adviser	**Sir B.N. Rau**	Prepared the initial working draft of the Constitution.
Secretary to Constituent Assembly	**H.V.R. Iyengar**	Senior ICS officer; chief administrative executive of the Assembly Secretariat.
Chief Draftsman	**S.N. Mukherjee**	Renowned for drafting complex constitutional and legal clauses with extraordinary precision.

Role / Element	Person / Institution	Specific Fact (UPPCS Trap Lock)
Calligrapher (English Original)	**Prem Behari Narain Raizada**	Handwrote the entire original Constitution in a flowing italic style with a calligraphic nib (no typewriter or printing was used). He charged no fee, asking only to write his name on every page and his grandfather's name on the last page.
Illumination & Decoration (English)	**Nand Lal Bose & Beohar Rammanohar Sinha**	Celebrated artists from Shantiniketan (Kala Bhavana); decorated borders and margins. Beohar Rammanohar Sinha specifically illuminated the famous **Preamble** page.
Calligrapher (Hindi Original)	**Vasant Krishan Vaidya**	Handwrote the original Hindi translation/version of the Constitution.
Illumination & Decoration (Hindi)	**Nand Lal Bose**	Illuminated and decorated the Hindi manuscript pages.
Official Seal / Emblem of CA	**Elephant (*Gaja*)**	Adopted as the official emblem and seal of the Constituent Assembly.

Women members

- The original Constituent Assembly had about **15 women members** — a significant presence for the 1940s, though still a small fraction of the total.
- **Hansa Mehta** moved amendments on women's rights and spoke strongly for gender equality in citizenship and law.
- **Durgabai Deshmukh (देशमुख)** worked on social-welfare and planning-related provisions and later chaired the Central Social Welfare Board.
- **Rajkumari Amrit Kaur** was the only woman in Nehru's first Cabinet and became India's first Health Minister.
- **Sarojini Naidu** had earlier become the first woman President of the Indian National Congress (1925).
- **Sucheta Kripalani** later became the first woman Chief Minister of an Indian State (**Uttar Pradesh** (उत्तर प्रदेश), 1963).
- **Vijayalakshmi Pandit** later became India's first woman ambassador to the United Nations.
- **Dakshayani Velayudhan** was among the few Dalit (दलित) women in the Assembly and spoke on untouchability and social justice.

Woman member	Province / seat (1946 election)
Ammu Swaminathan	Madras
Begum Aizaz Rasul	United Provinces
Dakshayani Velayudhan	Madras
Durgabai Deshmukh	Madras
Hansa Mehta	Bombay
Kamla Chaudhry	United Provinces

Woman member	Province / seat (1946 election)
Leela Roy	Bengal
Malati Choudhury	Orissa
Purnima Banerjee (बनर्जी)	United Provinces
Rajkumari Amrit Kaur	Central Provinces & Berar
Renuka Ray	Bengal
Sarojini Naidu	Bengal
Sucheta Kripalani	United Provinces
Vijayalakshmi Pandit	United Provinces
Annie Mascarene	Travancore–Cochin

> **Logic:** Fact **~15 women**; Gandhi **not** a member; CA election was **indirect**, not UAF.

Minorities, tribal areas & excluded areas — Advisory Committee work

- **Advisory Committee on Fundamental Rights, Minorities and Tribal Areas** was chaired by **Sardar Patel**.
- It had **five sub-committees** that fed minority safeguards, tribal administration and fundamental-rights drafts into the final text.

Sub-committee	Chairman	Focus
Fundamental Rights Sub-Committee	**J.B. Kripalani**	Draft catalogue of justiciable rights
Minorities Sub-Committee	**H.C. Mukherjee**	Religious and linguistic minorities
North-East Frontier Tribal Areas & Assam Excluded Areas Sub-Committee	**Gopinath Bardoloi**	Tribal / excluded areas of Assam–NE
Excluded & Partially Excluded Areas Sub-Committee	**A.V. Thakkar**	Scheduled / backward tribal tracts
North-West Frontier Tribal Areas Sub-Committee	(as constituted)	NW frontier tribal belt

- The **Minorities Sub-Committee** examined safeguards for **Muslims, Sikhs, Christians, Parsis, Anglo-Indians** and other religious and linguistic groups.
- It recommended **joint electorates** with safeguards — rejecting the colonial **separate electorates** model that Patel later called British “mischief.”
- Its work shaped **cultural and educational rights** (later **Articles 29–30**) and broader minority protections in Part III (मौलिक अधिकार) debates.

- **Tribal** (दिकू) and **excluded-areas** sub-committees fed the later **Fifth and Sixth Schedules** logic for administration of Scheduled Areas and tribal belts.
- The Objectives Resolution itself promised safeguards for **minorities and backward classes** — the Advisory Committee translated that pledge into constitutional articles.

Inline PYQ — UPPCS Prelims 2021, Q1

"Can you show me one free country where there are separate electorates?... The British element is gone, but they have left mischief behind."

Who among the following said the above mentioned statement in the Constituent Assembly debates?

A. Somnath (सोमनाथ) Lahiri B. Jawaharlal Nehru C. Sardar Vallabh Bhai Patel D. N. G. Ranga

Show answer

Ans: C — Sardar Vallabhbhai Patel.

Important committees

Committee	Chairman
Drafting Committee (**29 Aug 1947**; **7** members)	**B.R. Ambedkar**
Union Constitution Committee	**Jawaharlal Nehru**
Union Powers Committee	**Jawaharlal Nehru**
States Committee	**Jawaharlal Nehru**
Provincial Constitution Committee	**Sardar Patel**
Advisory Committee on Fundamental Rights, Minorities etc.	**Sardar Patel**
Rules of Procedure Committee	**Rajendra Prasad**
Steering Committee	**Rajendra Prasad**
Finance and Staff Committee	**Rajendra Prasad**
Order of Business Committee	**K.M. Munshi**
House Committee	**B. Pattabhi Sitaramayya**
Constituent Assembly Functions Committee	**G.V. Mavalankar**
Credential Committee	**Alladi Krishnaswami Ayyar**
Fundamental Rights Sub-Committee	**J.B. Kripalani**
Minorities Sub-Committee	**H.C. Mukherjee**
North-East Frontier Tribal Areas & Assam Excluded Areas Sub-Committee	**Gopinath Bardoloi**
Excluded & Partially Excluded Areas Sub-Committee	**A.V. Thakkar**
Ad hoc Committee on National Flag (**23 June 1947**)	**Rajendra Prasad**

Committee	Chairman
Constitutional Adviser	**B.N. Rau**

- **B.N. Rau's** first working draft had about **243 Articles and 13 Schedules**.
- Third reading of the Constitution ran **17–26 November 1949** (none of the common MCQ date distractors match exactly).
- **Ambedkar** was first elected to the CA from East Bengal; after Partition he entered from the **Bombay Presidency** (Pune (पुणे) seat vacated by M.R. Jayakar).
- Ad hoc Flag Committee members included Azad, Sarojini Naidu, Rajagopalachari, K.M. Munshi and Ambedkar under Prasad's chair. **Inline PYQ — UPPCS Prelims 2020, Q134**

On which of the following dates, Constituent Assembly of India adopted the National Flag?

A. 22 January, 1950 B. 24 January, 1950 C. 22 July, 1947 D. 22 July, 1948

Show answer

Ans: C — 22 July, 1947.

Inline PYQ — UPPCS Prelims 2018, Q147

Mention the correct date of the last meeting of the Constituent Assembly of India.

A. 26 Nov. 1949 B. 5 Dec. 1949 C. 24 Jan. 1950 D. 25 Jan. 1950

Show answer

Ans: C — 24 Jan. 1950.

Drafting Committee members (7): B.R. Ambedkar (Chair), N. Gopalaswami Ayyangar, Alladi Krishnaswamy Ayyar, K.M. Munshi, Syed Mohammad Saadullah, N. Madhava Rau (replaced B.L. Mitter due to ill-health), T.T. Krishnamachari (replaced D.P. Khaitan upon his death in 1948). - **Party affiliation trap (High-Yield UPPCS Fact): K.M. Munshi** was the **only member originally belonging to the Indian National Congress**. (Ambedkar represented Scheduled Castes Federation; Saadullah was Muslim League; Ayyar and Ayyangar were non-party independents; Mitter/Rau were civil service administrators; T.T. Krishnamachari joined Congress later).

Inline PYQ — UPPCS Prelims 2025, Q82

Match List-I with List-II and choose the correct answer using the code given below the lists.

List-I (Committee) A. Union Constitution Committee B. Rules of Procedure Committee C. Drafting Committee D. Fundamental Rights Sub-Committee

List-II (Chairman) 1. Dr. Rajendra Prasad 2. J. B. Kripalani 3. Dr. B. R. Ambedkar 4. Jawaharlal Nehru

> Note: Row order in the table is **not** the answer key. Match each List-I item to List-II, then read the code.

A. 2 1 3 4 B. 1 4 3 2 C. 4 1 3 2 D. 1 2 3 4

Show answer

Ans: C — Nehru; Rajendra Prasad; Ambedkar; Kripalani.

Inline PYQ — UPPCS Prelims 2023, Q3

Consider the following events and arrange them in the correct chronological order starting from the earliest to the last activity—

(I) Appointment of the Drafting Committee (II) Indian Constitution was adopted and enacted (III) Date of commencement of Indian Constitution (IV) Constituent Assembly first met

A. III, II, I, IV B. IV, I, III, II C. I, II, IV, III D. IV, I, II, III

Show answer

Ans: D — First met (Dec 1946) → Drafting Committee (Aug 1947) → Adopted (26 Nov 1949) → Commenced (26 Jan 1950).

Adoption & Enforcement

- Constitution **adopted / enacted: 26 November 1949** — Preamble date line; some provisions (citizenship, Elections, provisional Parliament, temporary/transitional articles, etc.) came into force **immediately**.
- Constitution **came into force fully: 26 January 1950** — Republic Day (chosen to honour Purna Swaraj pledge of **26 January 1930**).
- On commencement India became a **Sovereign Democratic Republic** (Socialist / Secular added later by **42nd (42वां) Amendment, 1976** — see Topic 2 Preamble).
- India became a Republic; Dr. Rajendra Prasad took oath as first President.

N.10 Sources / Borrowed Features

Identity: "Bag of borrowings" adapted to Indian conditions — not a blind copy of any one foreign constitution

Master source table

Feature / provision	Source country	Key fact
Parliamentary government, Cabinet system, Rule of Law, legislative procedure, **single citizenship**, bicameralism, writs (idea)	**UK**	Parliamentary ≠ USA
Fundamental Rights (मौलिक अधिकार), judicial review, independence of judiciary, impeachment of President, removal of SC/HC judges, office of **Vice-President**	**USA**	FR ≠ UK

Feature / provision	Source country	Key fact
Directive Principles (राज्य के नीति निदेशक तत्व) of State Policy, method of Presidential election, nomination of Rajya Sabha (राज्यसभा) members	**Ireland**	DPSP ≠ USA
Federation with a **strong Centre**; **residuary powers with Centre**; Centre-appointed **Governor**; **"Union of States"** phrasing (British North America Act, 1867)	**Canada**	Residuary ≠ Australia
Concurrent List (समवर्ती सूची); freedom of trade & commerce; **joint sitting** (संयुक्त बैठक) of Parliament; language of Preamble	**Australia**	Concurrent ≠ Canada
Suspension of Fundamental Rights during **Emergency** (except financial emergency (वित्तीय आपात) lineage)	**Germany (Weimar)**	—
Procedure established by law (original Art. 21 wording)	**Japan**	Not US "due process"
Amendment procedure; election of Rajya Sabha members (idea)	**South Africa**	—
Republic; liberty–equality–fraternity spirit in Preamble discussions	**France**	Ideals, not structure
Federal scheme, three lists, emergency lineage, PSC, Federal Court → SC path, much administrative skeleton	**GOI Act 1935**	Largest structural borrow
Fundamental Duties (मौलिक कर्तव्य) (Part IVA) and Justice ideals in Preamble discussions	**USSR** model (Duties added later by **42nd**, 1976)	Not in original 1950 text

- The **Election Commission** (निर्वाचन आयोग) is an **Indian original** — not borrowed from Ireland, UK or USA (Presidential *election method* is Irish; the EC body is not).
- Constitution is supreme in the Indian political system — neither Parliament nor the Court sits above it.

Indian originality (not borrowed wholesale)

- **Universal adult franchise** from the first general election (**Article 326**) — broader than the 1935 Act franchise used for CA elections.
- **Quasi-federal** strong-Centre model with **single citizenship** and an **integrated judiciary** (एकीकृत).
- **Fundamental Rights + DPSP + Fundamental Duties** triad — unique blend over time.
- **Basic Structure** doctrine — purely Indian judicial innovation (**Kesavananda** (केशवानंद भारती 1973), 1973).
- Asymmetric federalism through **Fifth / Sixth Schedules**, **Article 371** series, and later special provisions.

> **Logic:** Highest-yield trap = **Residual powers** → **Canada**; **Concurrent List** → **Australia**. Do not swap.

Inline PYQ — UPPCS Prelims 2021, Q54

Which one of the following is NOT correctly matched?

(Provisions) — (Sources)

A. Fundamental Rights – USA B. Directive Principles of State Policy – Ireland C. Residual Powers of Center – Australia D. Emergency powers - Germany

Show answer

Ans: C — Residuary powers of the Centre are borrowed from **Canada**, not Australia. Concurrent List is from Australia.